

What to have in place while the policy waits for a gazette

The policy is approved but not yet law. Section 14 of the Petroleum Act and the Affirmative Action Act already bind, and the preparation below is needed whichever form the legislation takes.

COMPLIANCE STANDING

Item	In place
Affirmative Action report current and compliance certificate valid	☐
A named Namibian understudy for every non-Namibian employee, or a section 19(4) exemption applied for	☐
Tax good standing with NamRA	☐
Social Security Commission registration and good standing	☐
Company registration documents current	☐

WORKFORCE DOCUMENTATION

Item	In place
Workforce documented by nationality and occupational level	☐
Qualifications and certificates on file for each employee	☐
Training records kept, with dates and evidence	☐
Genuine understudy and succession programmes, documented	☐

OWNERSHIP AND STRUCTURE

Item	In place
Shareholding records clean and current, anticipating a 51 percent Namibian ownership test	☐
Principal place of business in Namibia evidenced	☐
Beneficial ownership documented, with nothing that reads as fronting	☐

WATCHING THE LAW

Item	Done
Someone owns the task of watching for the gazetting of the policy	☐
Someone owns the task of watching for the local content bill	☐